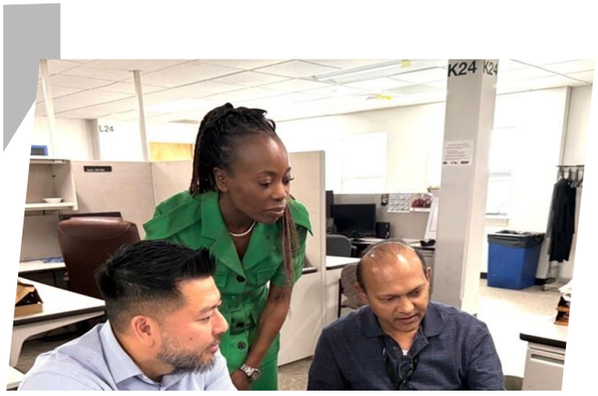
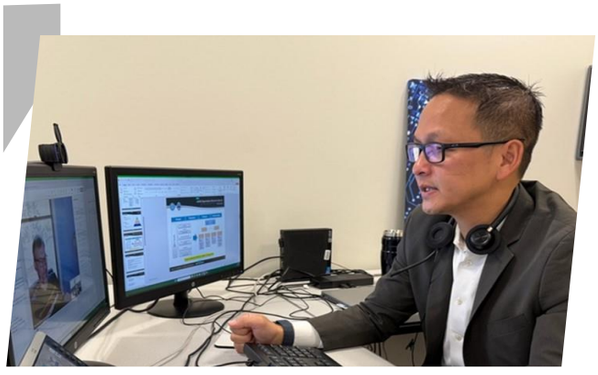
Other Than Commercial Computer Software

Implementation Guide for DOD Acquisition





Key Definitions

Commercial Computer Software: Products used by the general public or non-governmental entities for non-governmental purposes

Other Than Commercial Software: Computer software not typically used by the general public or multiple state, local, or foreign governments

Critical Requirements

- Software deliverables and license rights needed throughout lifecycle
- Delivery in usable digital format
- Documentation for maintenance
- Interface understanding requirements
- Version history tracking

Implementation Overview

The DOD must consider all software and related materials necessary throughout the software lifecycle during acquisition negotiations, ensuring fair and reasonable pricing before contract award.

Essential Resources

FAR 2.101: Definitions

DFAR 227.7202-1: Policy

DFARS 252.227-7014: Rights in Other Commercial Computer Software

DFARS 252.227-7018: SBIR Program Rights

Other Than Commercial Computer Software

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Understanding Software Categories

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Essential Resources

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Implementation Requirements

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Digital Format Requirements:

- Delivered in usable digital format
- No reliance on external software code
- Complete documentation provided

Critical Considerations

- Software deliverables throughout lifecycle
- Interface understanding requirements
- Version history requirements
- Maintenance documentation needs

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Additional Implementation Details

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DFARS Provisions

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Critical Considerations

License Rights:

- Technical data rights
- SBIR program considerations
- Multiple Site Usage Rights

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Restricted Rights

Government Permissions:

- Make reasonable copies
- Transfer between agencies
- Modify for specific needs
- Emergency repair rights

Implementation Best Practices

Key Strategies:

- Early planning and requirements definition
- Comprehensive documentation approach
- Stakeholder engagement throughout lifecycle
- Regular progress monitoring and updates

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Get Support
Email: DAUHelp@DAU.edu
Phone: 866-568-6924

Other Than Commercial Computer Software

DOD Implementation of 10 U.S.C. § 4576

DEFINITIONS & SCOPE

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Key Terms:

- Commercial Computer Software: Products used by the general public for non-governmental purposes
- Other Than Commercial Software: Software not typically used by general public or multiple governments

REQUIREMENTS

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DOD Must Consider:

- All software and related materials needed throughout lifecycle
- Delivery in usable digital format
- No reliance on external software code
- Documentation for maintenance and interfaces
- Version history requirements

IMPLEMENTATION

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Key Terms

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ADDITIONAL RESOURCES

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